

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 20 2026, AT 8:30 A.M.**

These are the tentative rulings for the **THURSDAY, AUGUST 20, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, AUGUST 19, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. S-CV-0047160 GUINASSO, FRANCES v. CITY OF LINCOLN

Petition for Approval of Minor's Compromise Claim

Petitioner's petition for approval of minor's compromise claim is denied without prejudice. Petitioner requests the court to approve attorney's fees in the amount of 33.33% of minor's gross recovery. Absent extraordinary and compelling circumstances, the court finds that reasonable attorney fees for representation of a minor are no more than one-fourth of minor's gross recovery. The court previously continued this matter so petitioner could file an amended petition on or before August 17, 2026. A review of the court record reveals petitioner has not timely filed an amended petition.

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2. S-CV-0051163 FRANCE, JASON v. POWERS, BRIDGET

Defendant/Cross-Complainant Bridget Powers's Motion for Award of Post-Offer Attorney's Fees

Preliminary Matters

Plaintiff's objections are sustained in their entirety.

Ruling on Motion

Defendant/cross-complainant Bridget Powers moves for an award of post-offer attorney's fees pursuant to Code of Civil Procedure section 998.

First, the motion is timely. The notice of entry of judgment was filed and served on January 26, 2026. This creates a deadline of March 27, 2026, to file and serve the motion for attorney's fees. (Cal. Rules of Court, rule 3.1702, 8.104; *InSyst, Ltd. v. Applied Materials, Inc.* (2009) 170 Cal.App.4th 1129, 1134.) Defendant filed and served her motion via e-mail on March 25, 2026. This is timely. Plaintiff's argument that the time began to run after defendant emailed the judgment on January 8, 2026, is unavailing because the email did not contain a proof of service. (*Thiara v. Pacific Coast Khalsa Diwan Society* (2010) 182 Cal.App.4th 51, 57.)

Second, defendant may recover post-offer attorney's fees pursuant to Code of Civil Procedure 998 even though the court previously found neither party was the prevailing party. (*Scott Co. of California v. Blount, Inc.* (1999) 20 Cal.4th 1103, 1113.)

Third, the Code of Civil Procedure section 998 offer ("998 Offer") was both valid and reasonable. "The written offer shall include a statement of the offer, containing the terms and conditions of the judgment or award, and a provision that allows the accepting party to indicate acceptance of the offer by signing a statement that the offer is accepted." (Code Civ. Proc., § 998, subd. (b).) Moreover, the offer "must be sufficiently specific to allow the recipient to evaluate the worth of the offer and make a reasoned decision whether to accept the offer." (*Khosravan v. Chevron Corp.* (2021) 66 Cal.App.5th 288, 295.) "Where ... the offeror obtains a judgment more favorable than its offer, the judgment constitutes prima facie evidence showing the offer was reasonable and the offeror is eligible for costs as specified in section 998. [Citation.] Once the offeror shows the section 998 offer is valid, the burden shifts to the offeree to show the offer was not made in good faith." (*Id.* at 295–96.)

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Defendant's 998 Offer included the following terms: (1) defendant will receive \$120,000 from nominal defendant JxB Properties, LLC; and (2) plaintiff will receive the remaining assets from JxB Properties, reduced by any liabilities and costs of dissolving JxB Properties. (Motion, Ex. A.)

Defendant presents evidence that at the time the offer was made, JxB Properties had assets—held in a client trust account—in the amount of \$416,888.25. The liabilities were \$11,951.35 owed to the Franchise Tax Board and \$3,248.89 owed to Wilson, Myers & Dold, Certified Public Accountants. Thus, if the offer were accepted, defendant would receive \$120,000 and plaintiff would receive \$281,688.01. The terms are thus sufficiently specific for plaintiff to have evaluated the worth of the offer.

Plaintiff rejected the 998 Offer.

The court entered judgment whereby plaintiff recovered \$265,844.01. This is less than defendant's 998 Offer. Defendant's 998 Offer is therefore presumed reasonable. The burden thus shifts to plaintiff to establish defendant did not make 998 Offer in good faith. However, plaintiff does not meet his burden.

Fourth, because the 998 Offer was valid and reasonable, the court must then make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoice attached as Exhibit A to the declaration of Randall R. Wilson. The court observes instances where the work appears to be duplicative and an excessive number of hours are billed for what should be relatively

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straight-forward tasks. The court determines that 116.1 hours are reasonable for Randall R. Wilson.

The court must next address whether the request for \$595 per hour by Randall R. Wilson is reasonable. Determining the reasonable amount of attorneys' fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, “[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement.” (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$400 per hour by Randall R. Wilson is reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$46,440.00 for attorney’s fees.

3. S-CV-0053141 HOSTLER, GRACE v. TERNAVSKY, ALEX

Defendant’s Motion to Compel Plaintiff Grace Hostler’s Attendance at Continued Deposition

Defendant’s unopposed motion to compel plaintiff Grace Hostler’s attendance at continued deposition is granted. (Code Civ. Proc., § 2025.450.) Plaintiff shall appear for deposition within 20 days after service of the order after hearing.

No sanctions were sought in the notice of motion and thus the court declines to impose sanctions on plaintiff or her counsel of record.

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4. S-CV-0054631 PTAK, CRYSTAL v. THOMAS, KIRA

Motion to be Relieved as Counsel

The motion to be relieved as counsel for plaintiffs Crystal Ptak and Olver Jouin by Kestrel Law PLLC is granted, effective upon the filing of proof of service of the signed order after hearing on the clients, Crystal Ptak and Oliver Jouin. (Code Civ. Proc. § 284, subd. (2); Cal. Rules of Court, rule 3.1362.)

5. S-CV-0054704 DUPONT, DONALD v. CONFIDANT BOARD

Plaintiffs' Motion to Vacate Judgment (CCP § 663)

Plaintiffs' motion to vacate judgment pursuant to Code of Civil Procedure section 663 is dropped from calendar because the time for the court to rule on the motion lapsed on July 7, 2026, as plaintiffs filed their motion on April 23, 2026, and thus the motion was denied by operation of law. (Code Civ. Proc., §§ 663, 663a, subd. (b); *Machado v. Myers* (2019) 39 Cal.App.5th 779, 799–800.)

6. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

Plaintiff's Motion for Leave to Amend to File Plaintiff's First Amended Complaint

Cross-complainants' motion for leave to file a second amended cross-complaint is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Cross-complainants shall file and serve the second amended cross-complaint attached to the declaration of Brad McDowell on or before **August 31, 2026**.

Plaintiff/Cross-Defendant's Demurrer to Defendants/Cross-Complainants' Cross-Complaint

Plaintiff/cross-defendant's demurrer is overruled as moot in light of the court's ruling granting cross-complainants leave to file a second amended cross-complaint.

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7. **S-CV-0055800** **A, M. v. FORESTHILL UNION SCHOOL DISTRICT**

Plaintiffs' Motion to Compel Further Response by Foresthill Union School District to Request for Production of Documents, Set One, and Request for Monetary Sanctions

Preliminary Matters

Plaintiffs' requests for judicial notice are granted.

Ruling on Motion

Plaintiffs' motion to compel defendant Foresthill Union School District further responses to plaintiffs' request for production of document, set one, is denied as to request for production of documents numbers 2, 3, 4, 6, 7, and 10. (Code Civ. Proc., § 2031.310.)

Plaintiffs' motion to compel is further denied as to request for production of documents, set one, number 5 because it is not included in the separate statement.

Moreover, plaintiffs motion to compel is denied as to request for production of documents, set one, number 1 because the separate statement seeks the court to compel further responses to all documents defendant identified in their responses to plaintiffs' form interrogatories yet the only form interrogatory responses plaintiffs provided to the court are form interrogatories numbers 4.1 and 4.2. (Balch Dec'l, Ex. A.) However, the moving papers, separate statement, opposition, and reply do not discuss the insurance information and instead argue about various reports authored by certain individuals. The court cannot determine whether compelling a response is proper without plaintiffs properly identifying the category of documents it seeks.

Plaintiffs' motion is granted as to requests for production of documents, set one, numbers 8 and 9 with the temporal limitation of documents existing 2 years preceding and up to the filing of the complaint. Defendant shall provide further verified responses and documents without objections within 20 days after service of signed order after hearing.

Plaintiffs' request for sanctions is denied because defendant acted with substantial justification.

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8. S-CV-0056734 TAYLOR INVESTMENTS v. LAGERQUIST, REID

Plaintiff/Cross-Defendant Taylor Investments, LLC's Motion to Dissolve or Modify Injunction Pursuant to C.C.P. § 533

Preliminary Matters

Defendant's objection to paragraph 6 of Denys Panibrats's declaration is sustained. The remainder of the objections are overruled.

Plaintiff's requests for judicial notice of the existence of the grant easement and PG&E Rule No. 16 are granted.

Ruling on Motion

Plaintiff moves for the court to modify or dissolve the injunction granted on March 18, 2026.

Code of Civil Procedure section 533 provides

In any action, the court may on notice modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order.

(Code Civ. Proc., § 533.)

There have not been any material changes in the facts or law since the injunction was granted. Nor would the ends of justice be served from dissolving or modifying the injunction. A dissolution or modification to the injunction would disrupt the status quo and contravene the language of the recorded easement.

Accordingly, plaintiff's motion is denied without prejudice.

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9. S-CV-0057044 IN RE THE PETITION OF TRAINER, BRIAN

Petition for Approval of Minor's Compromise Claim

The minor's compromise claim is denied without prejudice because the court is unable to determine the settlement is in the minor's best interest without reviewing the annuity terms.

10. S-CV-0057560 DESJARLAIS, RICKY v. CUMMING MGMT. GROUP

Application of Megan S. Glowacki to Appear as Counsel *Pro Hac Vice*

The application of Megan S. Glowacki to appear as counsel *pro hac vice* is granted as prayed. (Cal. Rules of Court, rule 9.40, sub. (c)(1).)

Application of Hannah E. Caldwell to Appear as Counsel *Pro Hac Vice*

The application of Hannah E. Caldwell to appear as counsel *pro hac vice* is granted as prayed. (Cal. Rules of Court, rule 9.40, sub. (c)(1).)